

## 26STCV03548 26STCV03548

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-10

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Case Number: 26STCV03548 Hearing Date: July 10, 2026 Dept: 507

Tentative

Ruling

Judge Nicholas

F. Daum, Department 507

HEARING

DATE: July 10, 2026 TRIAL DATE: NOT SET

CASE: Nayrika Masjedi v. The Burlington Ins.  
Co.

CASE

NO.: 26STCV03548

(1) MOTION FOR RECONSIDERATION

(2) DEMURRER TO SECOND AMENDED

COMPLAINT/MOTION FOR JUDGMENT ON THE PLEADINGS

MOVING

PARTY: (1)Plaintiff Nayrika Masjedi, in  
pro per; (2) Defendant Burlington Ins. Co.

TENTATIVE RULING:

Masjedi's

Motion for Reconsideration is DENIED.

Burlington's

Motion for Judgment on the Pleadings to the Second Amended Complaint is  
SUSTAINED with leave to amend.

Any

amended pleading must be filed within 20 days of this order.

Moving

party to give notice.

BACKGROUND:

This

is a declaratory relief action. Masjedi seeks a judicial declaration that  
Burlington is required to defend a corporation from a cross-claim in an  
underlying legal action.

DISCUSSION

Motion for Reconsideration

Masjedi

moves for reconsideration of the Court's June 2, 2026 order. Masjedi presents  
no new or different facts, circumstances, or law that would entitle her to  
reconsideration. And the Court sees no basis to, on its own motion, reconsider  
that ruling. Accordingly, Masjedi's Motion for reconsideration is DENIED.

Demurrer to Second Amended

Complaint/Motion for Judgment on the Pleadings

Burlington

demurs to (or moves for judgment on the pleadings upon) the Second Amended  
Complaint for lack of standing. The Court agrees with Burlington. Under clear law,  
Masjedi has no standing to assert this claim for declaratory relief.

Legal

Standard

A

demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A motion for judgment on the pleadings is the functional equivalent to a general demurrer. (Lance Camper Mfg. Corp. v. Republic Indemnity Co. of Am. (1996) 44 Cal.App.4th 194, 198).

#### Analysis

“Every

action must be prosecuted the name of the real party in interest, except as otherwise provided by statute.” (Code Civ. Proc. § 367.) Ordinarily, “the person possessing the right sued upon by reason of the substantive law is the real party in interest.” (Del Mar Beach Club Owners Assn. v. Imperial Contracting Co. (1981) 123 Cal.App.3d 898, 906). “Someone who is not a party to the contract has no standing to enforce the contract or to recover extra-contract damages for wrongful withholding of benefits to the contracting party.” (Hatchwell v. Blue Shield of California (1988) 198 Cal.App.3d 1027, 1034.) As applied to insurance contracts, “[a] non-party who is nevertheless entitled to policy benefits, such as an ‘insured’ person under the terms of the policy or an express beneficiary, has standing only if she is the claimant whose benefits are wrongfully withheld.” (Id.)

The insurance

policy which Masjedi seeks to invoke states on its face that The Clean Out Group Inc. is the named insured, not Masjedi personally. (RJN. Exh. A.) This corporate entity is also the only cross-defendant named in the cross-complaint for which Masjedi demands a defense from Burlington. (RJN Exh. C.) And this action seeks a declaration that Burlington owes a defense to that entity, not to Masjedi. (See SAC Prayer for Relief.) The record plainly establishes that The Clean Out Group, not Masjedi, is the real party in interest, and that Masjedi has no standing to pursue these claims.

The Court notes that the pleadings allege that

Masjedi brings this action as an “assignee” of the corporate entity’s rights under the policy. (SAC ¶ 34.) No such assignment is included in the pleadings.

Moreover, judicially-noticeable records establish that Masjedi is the sole officer and director of The Clean Out Group. (RJN Exh. E.) "A corporation cannot represent itself in court, either in propria persona or through an officer or agent who is not an attorney." (Merco Constr. Engineers Inc. v. Mun. Ct. (1978) 21 Cal.3d 724, 729.) It would defeat the purpose of that rule to permit a corporation to assign its right to pursue claims to its sole officer and director. And the Court is under no obligation to give legal effect to sham assignments. (E.g., Shea v. Leonis (1939) 14 Cal.2d 666, 669 [assignment of lease disregarded where assignment intended to evade liability under lease].)

The

Court concludes based on the record presented that Masjedi cannot establish standing for these claims. Any right to a legal defense belongs to The Clean Out Group, not Masjedi, and any assignment of that right to Masjedi would circumvent the rule against corporate self-representation.

Leave  
to Amend

When

a demurrer is sustained, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318). When a plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.) Accordingly, California law imposes the burden on the plaintiffs to demonstrate the manner in which they can amend their pleadings to state their claims against a defendant. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) "Denial of leave to amend constitutes an abuse of discretion unless the complaint shows on its face it is incapable of amendment. [Citation.] Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.)

Here,

the Court is skeptical that there is a reasonable possibility of amendment, so long as the standing issues remain as described herein. Nonetheless, in deference to the strong rule

permitting liberality in amendments, the Court will provide Masjedi with one last chance to provide a viable pleading.

Meet  
and Confer

Before

filing a demurrer, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who has filed the pleading subject to the demurrer and file a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41(a).)

However, an insufficient meet and confer process is not grounds to overrule or sustain a demurrer. (Code Civ. Proc., § 430.41(a)(4).)

The

Declaration of Yas-Banoo Omid states that counsel for Burlington conferred telephonically with Masjedi on May 20, 2026 regarding this demurrer, but the parties were unable to resolve this dispute. (Omid Decl. ¶ 2.) This is sufficient.

Request for Judicial Notice

Burlington

requests that the Court take judicial notice of several documents. The Court rules as follows:

1.

Burlington Insurance Policy no. 828B000028 issued to  
The Clean Out Group, Inc. GRANTED. Legally operative document on which the action is premised. (Scott v. JP Morgan Chase Bank, N.A. (2013) 214 Cal.App.4th 743, 754-55.)

2.

Complaint in The Clean Out Group Inc. v. 3PL  
Worldwide, Inc., LASC Case No. 23STCV05947. ("Underlying Action") GRANTED (Evid. Code § 452(d).)

3.

Cross-Complaint in the Underlying Action filed by

3PL Worldwide, Inc. GRANTED (Evid. Code § 452(d).)

4.

Second Amended Complaint in this Action. GRANTED  
(Evid. Code § 452(d).)

5.

The Clean Out Group's Statement of Information filed  
June 5, 2025. GRANTED. (Evid. Code § 452(c).)

6.

April 10, 2026 Minute Order in the Underlying  
Action. GRANTED (Evid. Code § 452(d).)

7.

December 22, 2025 Minute Order in the Underlying  
Action. GRANTED (Evid. Code § 452(d).)

8.

Burlington's Answer to the Second Amended Complaint,  
filed in federal court but not before this Court. GRANTED (Evid. Code §  
452(d).)

Conclusion

Accordingly,  
Burlington's Demurrer to the Second Amended Complaint is SUSTAINED.

CONCLUSION:

Accordingly,  
Masjedi's Motion for Reconsideration is  
DENIED.

Burlington's  
Motion for Judgment on the Pleadings to the Second Amended Complaint is  
SUSTAINED with leave to amend.

Any  
amended pleading must be filed within 20 days of this order.

Moving  
party to give notice.

IT IS  
SO ORDERED.

Dated: July 10, 2026 \_\_\_\_\_

Nicholas  
F. Daum

Judge  
of the Superior Court

Any party may submit on the  
tentative ruling by contacting the courtroom via email at [email protected] by no later than 4:00 p.m. the day before the  
hearing. All  
interested parties must be copied on the email. It should be noted that if you  
submit on a tentative ruling the court will still conduct a hearing if any  
party appears. By submitting on the tentative you have, in essence, waived your  
right to be present at the hearing, and you should be aware that the court may  
not adopt the tentative, and may issue an order which modifies the tentative  
ruling in whole or in part.